

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #2	CCRB Case #: 201908175	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 09/09/2019 1:32 PM	Location of Incident: 49 West 225th Street	Precinct: 50	18 Mo. SOL 3/9/2021	EO SOL 10/24/2021	
Date/Time CV Reported Mon, 09/09/2019 6:15 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/16/2019 11:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jason Vasquez	04851	941163	NARCB BX
2. DT3 Jodi Brown	04057	936246	NARCB BX
3. DT3 Roberto Toribio	03100	948148	NARCB BX
4. DT3 Claude Mede	3751	939006	NARCB BX
5. DT3 Robert Jaquez	192	938711	NARCB BX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT David Pabon	00128	939158	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Jason Vasquez	Force: Detective Jason Vasquez used physical force against § 87(2)(b)	
B.DT3 Roberto Toribio	Force: Detective Roberto Toribio used physical force against § 87(2)(b)	
C.DT3 Jodi Brown	Force: Detective Jodi Brown used physical force against § 87(2)(b)	
D.DT3 Claude Mede	Force: Detective Claude Mede used physical force against § 87(2)(b)	
E.DT3 Robert Jaquez	Force: Detective Robert Jaquez used physical force against § 87(2)(b)	

Case Summary

On September 9, 2019, Sergeant David Pabon of Narcotics Borough Bronx filed this complaint on behalf of § 87(2)(b) and § 87(2)(b) with the Internal Affairs Bureau via telephone, generating IAB log 2018-34237. IAB forwarded this case to the CCRB, where it was received on September 16, 2019.

The IAB referral log contained no contact information for § 87(2)(b) or § 87(2)(b). Searches of CTS, BADS, DMV, Lexis Nexis, and CLEAR revealed a telephone number associated with § 87(2)(b). On September 26, 2019, a call was made to this number and a voicemail was left. On September 27, 2019, a call was received from § 87(2)(b) who said his mother received the undersigned's voicemail. § 87(2)(b) confirmed his contact information, rejected SMS, scheduled an interview appointment for October 2, 2019, and said he would consult his defense attorney before appearing for his interview appointment. On October 2, 2019, § 87(2)(b) missed his scheduled interview appointment without providing advanced notice. On October 3, 2019, a call was made to § 87(2)(b) who said he had not yet spoken to his attorney about whether he should provide a statement to the CCRB. § 87(2)(b) rescheduled his interview appointment for October 8, 2019. On October 8, 2019, § 87(2)(b) missed his scheduled interview appointment without providing advanced notice. On October 28, 2019, a search of the NYC Department of Corrections database revealed no record of § 87(2)(b) being incarcerated.

A search of CLEAR revealed an e-mail address for § 87(2)(b). E-mails were successfully sent to this e-mail address on September 24, 2019, October 3, 2019, and October 11, 2019. On October 15, 2019, an e-mail was received from § 87(2)(b) who wished to schedule an interview appointment. Given his ongoing criminal case, § 87(2)(b) was advised via e-mail to consult his defense attorney before providing a statement to the CCRB. On October 25, 2019, an e-mail was received from § 87(2)(b) who said his attorney advised him against providing a statement to the CCRB until his criminal case is concluded. § 87(2)(b) was informed that he may request to re-open this complaint when he is ready to do so.

§ 87(2)(g)

Squad No.: _____

Investigator: _____
Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____
Signature _____ Print Title & Name _____ Date _____

Reviewer: _____
Signature _____ Print Title & Name _____ Date _____